



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 18, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201810824 regarding Police Officer Edwin Lau, Tax No. [REDACTED] (DADS No. 2019-21016)

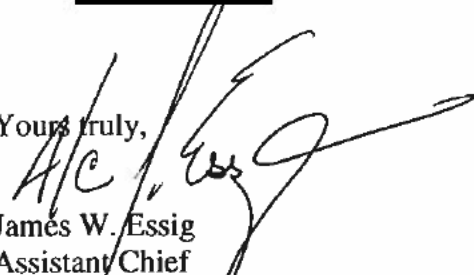
Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter, including internal stationhouse surveillance video footage of the incident, and has determined that Police Officer Lau will receive No Disciplinary Action for the allegation that he used physical force against an individual. The arrested individual in this matter made no complaint regarding the manner in which he was transported to the holding cell area. The officers involved indicated that the arrested individual refused to walk, either into the stationhouse, or to the cell area of the stationhouse, and that therefore, they had to carry him. Both the statements of the officers present and the video footage of the incident support this reasonable conclusion. While the CCRB views the individual as being dragged, the officers, reasonably, viewed themselves as carrying the individual, as most of his weight was being held off the ground by their efforts to move him safely.

Therefore, the Police Commissioner directs that Police Officer Lau receive no disciplinary action.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


James W. Essig
Assistant Chief
Commanding Officer
Police Commissioner's Office

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